

FOREWORD

Outstanding Features

The proposed Constitution consists of twenty articles and is relatively long compared to the 1981 and 1991 Constitution on which it is largely based.

What has made the present Constitution lengthy is the expansion of the Bill of Rights, which now includes a specific enumeration of the rights of the students of the University. The provision is largely based on the proposed Magna Carta of Student Rights bill, which is now pending approval in Congress. The new Constitution now defines the specific functions of the Executive and Central Board by separating them into two articles. The old Constitution defines them under one article creating doubt as to its independence from each other. A new body, the Central Judiciary Board, which will exercise judicial powers, has also been created.

The qualifications of the candidates for the Executive Board positions, which have been the subject of countless controversies before, have now been clarified. A systematic succession in case of vacancy in the Executive Board positions has now been provided in the proposed Constitution.

The provisions on the article on Commission on Elections have been notably changed. The choice of the new COMELEC, which previously was lodged to the incumbent student council, has now been transferred to the incumbent COMELEC members, removing any possibility of partisan political influence on the membership of the COMELEC. A simultaneous election has also been provided in the proposed Constitution, solving once and for all the perennial problem of failure of elections.

A separate article has also been devoted to the Student Organization Coordinating Council, recognizing its vital role in the cultural development of the Thomasian community.

Finally, a detailed procedure on how to amend or revise the Constitution has been provided by the proposed Constitution.

Current Status

On February 17, 2003, the proposed Constitution was approved by the Rev. Fr. Tamerlane Lana, O.P., Rector of the university. It is now set for ratification on February 27, 2003.

The approval of the Rector was intentionally sought to make the provisions of the proposed Constitution. It took effect, school year 2003-2004.

Central Student Council
2002- 2003

STUDENT GOVERNMENT CONSTITUTION OF THE UNIVERSITY OF SANTO TOMAS

PREAMBLE

We, the students of the University of Santo Tomas, cognizant of the statues of the University and the laws of the Republic of the Philippines to establish, with the help of Almighty God, a government that shall embody the highest aims and ideals of a free studentry under the inspiration of Saint Thomas Aquinas, promote general interest, protect our rights, foster a more fraternal relationship among ourselves in the Thomasian community and other sectors of the society and secure to ourselves and our posterity the principles of democracy under the rule of law and a regime of truth, justice, freedom, love, hope and charity, do ordain and promulgate this Constitution.

ARTICLE 1 NAME AND SEAL

Section 1. There shall be a Central Student Council (here in after referred to as CSC) in the University of Santo Tomas, deriving its authority and power from the student body, which it represents.

Section 2. The Central Student Council Seal embodies the virtues and aspirations of the student government of the University of Santo Tomas.

On the upper left is a *balance of the lady justice* indicating that the Central Student Council upholds the rule of Law and recognizes the rights and duties of the students of the university.

The upper right shows a *cross* symbolizing our Faith to the Almighty as protector and guide in everything that we do, putting our religious belief at the center of our government.

A *book* and a *diploma* signifying the ultimate goal every student... Education, occupy the lower left.

The *kapit-bisig* on the lower right symbolizes service, very reason for which the student government exists.

A *shield* showing the commitment of a student government in protecting these virtues and aspirations encloses the symbols. Superimposed at the center of it is the University seal indication our acknowledgment of the authority to which the student government belongs.

The seal is set in gold and black projecting the official colors of the University.

ARTICLE II DECLARATION OF PRINCIPLES

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| Section 1. | The CSC shall uphold the Christian ideals and objectives of the University. |
| Section 2. | The CSC shall protect the student's democratic rights and welfare. |
| Section 3. | The CSC shall promote the intellectual, spiritual, socio-cultural and physical well being of the students of this University. |
| Section 4. | The CSC shall serve as a forum for leadership training whereby the students may put into practice the principles and ideals of democracy. |
| Section 5. | The CSC shall recognize and guarantee individual existence of the local student councils and other student organizations duly recognized by the University. |
| Section 6. | The CSC shall work together with the faculty, non-academic personnel, and the administration in the realization of an academic community that is responsive to the needs of its constituents. |
| Section 7. | The CSC shall ensure the full participation of the studentry in all its endeavors. |

ARTICLE III
BILL OF STUDENT RIGHTS

- Section 1. Every student shall have the right to due process. No student shall be denied the equal protection of the laws.
- Section 2. Except when specifically required by the chosen course, no student shall be discriminated against solely on account of his physical handicap, socio-economic status, political or religious beliefs, sexual orientation or membership in student organizations, as well as certified rehabilitated drug abusers, provided their conditions were disclosed at the time of their application, and those suffering from the acquired immune deficiency syndrome.
- Section 3. Every student shall have the right to competent instruction and quality education relevant to his personal and cultural development and that of the nation.
- Section 4. The right of students to make a written evaluation of the performance of their teachers shall be recognized.
- Section 5. Subject to the existing policies, rules and regulations of the University, all students shall have the right to adequate welfare services and academic facilities such as, but not limited to, laboratory, library, research, recreation and physical education facilities.
- Section 6. The right to the students to legally organize among themselves for their physical, intellectual, moral, cultural, civic, spiritual, and political interests conformably with the mission of the University and for purposes not contrary to law shall not be abridged.
- Section 7. No Law shall be made abridging the students' freedom of speech, of expression, or of the press, or the right of the students, subject to the existing policies, rules and regulations of the University, peaceably to assemble and petition the student government or the university authorities for redress of grievances. Except

when the delay is imputable to them or when the tenor of their requests is not clear, the students shall have the right to receive prompt official replies from the University authorities regarding disposition of their petitions, complaints or grievances.

- Section 8. The right of the students to information on matters directly affecting their welfare and interest shall be recognized. Access to official records and other pertinent documents and papers pertaining to official acts, transactions or decisions affecting his own interest and welfare shall be afforded the students subject only to reasonable regulations that maybe imposed.
- Section 9. Students shall have the right to adequate notice of all rulers, regulations, policies and penalties to which they are subjects. All such rules, regulations, policies and penalties must be made available in writing and accessible to all students.
- Section 10. Students shall have access to print and broadcast media in their information activities. Subject to the law on libel and obscenity and existing policies, rules and regulations of the University, they shall have the right to print, circulate and/or mount leaflets, newsletter, posters, wall news, petitions and such other materials.
- Section 11. Provided they are not false or misleading, students shall have the right to publish student newspapers and other similar publications, print in their page materials, which they deem in pursuance of their academic freedom and freedom of expression in accordance with the laws on campus journalism. Pursuant thereto, no individual who is not a staff member of the student publication shall determine its content.
- Section 12. Every student shall have access to his own academic records, the confidentiality of which the University shall maintain and preserve.

- Section 13. No student shall be denied the opportunity to take the periodical or major examination for inability to pay what is due for tuition and other school fees, subject to reasonable guidelines or conditions, which may be imposed by the Office of the Vice Rector for Finance. However, students with outstanding balance who are allowed to take an examination shall, nevertheless, be subject to the right of the university to withhold the release or issuance of such students' records, or of documents mentioned in the immediately preceding section to deny such student's admission in the next succeeding semester or year until prior balance/s is/are paid.
- Section 14. No student shall be subjected to involuntary contribution.
- Section 15. Unjustifiable charges for the use of school facilities shall not be countenanced. Whenever possible, the university shall allow student government/councils or recognized student organizations to use school facilities free of charge subject to the existing policies, rules and regulations of the University.
- The University administration shall endeavor to provide, free of charge, a hall or building to house the offices of the student government/councils and different recognized student organizations within the premises of the university.
- Section 16. The right of the students to be secured in their persons, papers and effects against unauthorized and unreasonable searches and seizures of whatever nature and for any purpose, within the university premises, shall be inviolable.
- Section 17. The privacy of communication and correspondence among students shall be inviolable. Except those which threaten the security of the University or the safety of its officers, administrators, employees both academic and non-academic and students, any evidence obtained in

violation of this or the immediately preceding section shall be inadmissible for any purpose in any proceeding.

It shall be the responsibility of the school administration to promptly notify the students concerned of letters and other communication it receives in behalf of the students.

Section 18. Students' academic freedom shall consist of, but not be limited to, the following rights:

- a. To conduct researches in connection with academic work, and to freely discuss and publish their findings and recommendations;
- b. To conduct inquiry within the campus in curricular and extra-curricular activities;
- c. To choose a field of study and to pursue the quest for truth; to express their opinion on any subject of public or general concern which directly or indirectly affects the student or education system.
- d. To invite off-campus speakers or resource persons to student-sponsored assemblies, for a, symposia, and other activities of similar nature.

Section 19. Mere exercise of students' rights shall not be a ground for denying or withdrawing scholarship grants and privileges to deserving students.

Section 20. A student subject to disciplinary proceedings shall have the right to defend himself, to be heard and to present evidence on his behalf before an impartial body. He shall have the right to appeal adverse decisions of the said disciplinary board/authority to the appropriate offices or education agencies and if necessary, to the courts. He shall be presumed innocent until the contrary is proved.

Section 21. All students shall have the right to a speedy and impartial disposition of their cases before all quasi-

judicial or administrative bodies except when the delay is imputable to them.

- Section 22. Disciplinary sanctions imposed to students shall be proportionate to the seriousness of the violation committed.

ARTICLE IV STUDENT DUTIES AND OBLIGATIONS

- Section 1. It shall be the duty of every student to respect the University of Santo Tomas, to observe its Catholic values and traditions; obey its policies, rules, regulations and statutes, uphold its constitution, and the rules emanating from the student government.
- Section 2. It shall be the duty of every student to vote and actively participate in all student elections, referenda and plebiscites.
- Section 3. It shall be the duty of every student to participate actively in all the activities of the University and of the student government.
- Section 4. It shall be the duty of every student to exercise his rights responsibly with due respect to the rights of others.

ARTICLE V CENTRAL STUDENT COUNCIL

- Section 1. The CSC shall be the highest student government of the university and shall be responsible for formulating and implementing policies, rules and regulations directly affecting the welfare and interest of the students in pursuance to the objectives and principles set forth in this constitution.
- Section 2. The CSC shall be composed of two bodies, the Executive Board and the Central Board.

- a. The Executive Board shall be composed of the elected officers as stated under Section 2, Article VI of this constitution.
- b. The Central board shall be composed of all local student council presidents of the University as stated under Section 2, Article VII of this constitution.

- Section 3. The Executive Board with the Central Board shall define the position of the CSC on vital and on highly controversial issues such as, but not limited to, tuition fee increase, disbursement of funds, violation of students' rights, issuance of a political stand, conduction of university-wide rallies, as well as issues of National concern.
- Section 4. The CSC shall serve as the channel of communication among the different local student councils and coordinate their activities that are university-wide in scope and of common interest to the student body.
- Section 5. The CSC shall advise and make recommendations to the proper authorities on matters affecting students' welfare. Upon invitation, they shall have the right to attend, to participate, actively in the discussion and to vote in appropriate bodies of the university in matters directly affecting the students.
- Section 6. The CSC shall organize activities and services that will promote the general welfare of the students. It may coordinate with the Campus Ministry on purely religious or spiritual activities, and with the Student Organizations Coordinating Council (SOCC) on socio-cultural activities.
- Section 7. The CSC shall adopt its own internal rules and government provided they shall not be inconsistent with this Constitution.
- Section 8. In doing business, a majority of all the members shall be necessary except highly controversial issues as provided

under Section 3, Article V of this Constitution where 2/3 vote of all members sitting en banc is necessary provided, that any member who, for any reason cannot attend, may send a representative duly authorized in writing to act on his behalf.

ARTICLE VI EXECUTIVE BOARD

Section 1. The Executive Board shall perform all tasks relating to the implementation of the policies, rules, regulations and decisions adopted by the CSC.

Section 2. The Executive Board shall be composed of the following officers to be elected as herein provided, to wit:

1. President
2. Vice- President
3. Secretary
4. Treasurer
5. Auditor
6. Public Relations Officer

The above-mentioned officers shall be elected simultaneously with the local student council officers as may be provided by this constitution.

Section 3. The Executive Board shall have the power to create such committee as it may deem necessary.

ARTICLE VII CENTRAL BOARD

Section 1. The Central Board shall be the legislative body of the CSC and shall be responsible for formulating policies, rules and regulations directly affecting the welfare and interest of the students in pursuance of the objectives and principles set forth in this constitution.

- Section 2. The Central Board shall be composed of all the local student council presidents who shall be elected at large by the qualified voters of their respective faculty/college/school, as may be provided by law. The CSC president shall be an ex-officio member.
- Section 3. Unless otherwise provided by law, the regular meeting of the Central Board shall be held in the second Monday of each month. However, the President may call a special meeting whenever necessary.
- Section 4. The Central Board shall have its speaker who shall be voted by a majority of all the members and who shall be the convener of the said body.
- Section 5. A majority of the members of the Central Board shall constitute a quorum to do business, provided, that, any member who, for any reason cannot attend, may send a representative duly authorized in writing to act on his behalf.

ARTICLE VIII CENTRAL JUDICIARY BOARD

- Section 1. There shall be a Central Judiciary Board, which shall exercise such judicial powers as may be determined by this Constitution.
- Section 2. The Judiciary Board shall be composed of 5 members, all in ex-officio capacity:
1. CSC adviser
 2. Legal consultant of the Office for Student Affairs
 3. Chief of the Legal Aid Clinic of the Faculty of Civil Law
 4. President of the Canon Law Society
 5. Duly authorized representative of the CSC
- Section 3. The Judiciary Board shall have the following powers:

- a. To exercise exclusive original jurisdiction over impeachment cases filed against any member of the CSC.
- b. To review, revise, reverse, modify or affirm on appeal or certiorari as the rules may provide decisions, orders, and rulings of the COMELEC in cases provided by this constitution.
- c. To mediate over all cases where a question of law is involved or in cases where their jurisdiction is invoked.
- d. To provide a simplified procedure for the just and speedy disposition of all cases brought before them.

Section 4. No decision shall be released by the body without expressing clearly and distinctly, the facts and the law on which it is based.

Section 5. A majority vote of all the members shall be necessary to promulgate the decision of the judiciary board after careful consideration and full comprehension of the facts of the case.

Section 6.

- a. The presentation of the specific law in question and the particular case involved must be simply and clearly stated for the members of the judicial board.
- b. The Judiciary Board shall decide the matter within 15 days from the time the issue is submitted for decision.
- c. All decisions of the Judiciary Board shall be executory after 10 calendar days from the receipt of the notice of decision. All reviews and motions for reconsideration, filed within the same period, shall be entertained, for as long as there is a firm legal basis supporting them.

Section 7. The judiciary board may request for the necessary funds as the need arises.

ARTICLE IX
QUALIFICATIONS OF THE EXECUTIVE BOARD OFFICERS

Section 1. A candidate of any position of the Executive board shall possess the following qualifications on the day of the elections:

- a. Currently enrolled with a total of at least 15 units as may be certified by their respective faculties/colleges/schools.
- b. Having a general weighted average of at least 2.50 or its equivalent, and 2.75 or its equivalent for the Faculty of Civil Law and Faculty of Medicine and Surgery.
- c. Not having failed or dropped any subject from the semester immediately preceding the election, provided, that candidates for the positions of the president and the vice-president must not have failed or dropped any subject throughout his entire course, and in both instances, excluding P.E. and NSTP.
- d. Having continuous residency in the University for at least seven (7) months immediately preceding the elections.

In addition to the qualifications provided herein, only the incumbent officers of the Central or Local Student Council Executive Board are eligible to run as President or Vice- President of the CSC.

Section 2. No officer of the Executive Board shall, during his tenure, hold any other position in any capacity in any recognized student organization in the University.

Section 3. No graduating student shall be allowed to run for any position of the Executive Board.

ARTICLE X
RIGHTS AND DUTIES OF THE EXECUTIVE BOARD OFFICERS

Section 1. The President shall be the chief executive officer of the CSC. It shall be his duty to:

- a. Sign all documents and communications of the CSC.
- b. Preside over the meetings of the CSC.
- c. Appoint the Chairpersons of the committees, which the Executive Board may create.
- d. Present to the Central Board the program of the CSC and the guidelines of its policies.
- e. Exercise such other powers, which are inherent to his office and shall perform such other duties as may be necessary or incidental to the performance of his function or as the CSC may provide.

Section 2. The Vice-President shall:

- a. Be the coordinator of all the committees created by the Executive Board with supervisory powers over them
- b. Be the coordinator for external affairs of the CSC.
- c. Perform such other functions as may be required by his office or as the President of the CSC may assign.

Section 3. The Secretary shall:

- a. Prepare and file communications and documents of the CSC.
- b. Be responsible for the safekeeping of the records and documents of the CSC.
- c. Record the proceedings of the meetings of the CSC.
- d. Furnish copies of the minutes of the meetings to the members of the CSC on the immediately succeeding meeting and provide copies of other records and documents as may be requested.

- e. Perform such other functions as may be required by his office or as the President of the CSC may assign.

Section 4. The Treasurer shall:

- a. Prepare the budget of the CSC.
- b. Keep all the books of accounts and prepare and submit to the CSC semestral reports or as often as the latter may require.
- c. Perform such other functions as may be required by his office or as the President of the CSC may assign.

Section 5. The Auditor shall:

- a. Be responsible for establishing and maintaining an independent review and examination of the accounting, financial and other operations as protective and constructive services to the CSC, and attest to the result thereof.
- b. Perform such other functions as may be required by his office or as the President of the CSC may assign.

Section 6. The Public Relations Officer shall:

- a. Ensure the proper announcement of the activities of the CSC to the studentry through a student bulletin that may be established by the CSC.
- b. Make sure that the members of the CSC are well informed of all its activities and meetings.
- c. Be the coordinator for internal affairs of the CSC.
- d. Perform such other functions as may be required by his office or as the President of the CSC may assign.

ARTICLE XI
TENURE AND VACANCY

- Section 1. All duly elected and qualified officers and members of the Executive Board shall serve for a term of one year, which shall commence on April 1 upon taking oath before the Rector of the University or his representative:

"I, (state your name), do solemnly swear that I will faithfully and conscientiously fulfill my duties and obligations as (state your position) of the Executive Board of the Central Student Council, to preserve and defend its constitution, execute its laws and do justice to every member of the Thomasian Studentry, So help me God."

Section 2. The CSC shall begin to have been duly constituted upon taking of the oath of the elected officers of the Executive Board.

Section 3. In case of vacancy in the office of the president, the vice-president shall become the president. To fill the vice president's position left vacant, each member of the CSC shall nominate, through secret ballot, any member of the Central Board. The top three nominees shall be the candidates for the position. The CSC shall elect, through secret ballot, the winner who shall become vice-president and shall be deemed ipso facto resigned as local council president. The proceedings shall be presided by the new President of the CSC.

Section 4. In case of vacancy in the offices of the president and vice-president, the secretary shall act as president and the COMELEC shall immediately call a special election as may be provided by this Constitution. The candidates for the special election shall possess the qualifications set forth by this constitution.

The CSC shall, by law, provide for the manner in which one who is to act as president shall be selected until a president or a vice-president shall have qualified, in case of the inability of the CSC Secretary to assume the position.

Section 5. In case of vacancy in any other position of the Executive Board, each member of the CSC shall nominate any local council executive board officer. From among the nominees, three shall be chosen by the CSC through secret ballot to become candidates for the position. The

winner shall become the officer and shall be deemed ipso facto resigned as local council executive board officer. The proceedings shall be presided by the President of the CSC.

Section 6. In case of vacancy in all the positions in the executive board, the central board shall take over and assume the functions of the executive and the central board until the members of the executive board shall have been elected and qualified.

Section 7. No special elections shall be held within two months immediately preceding the day of election.

ARTICLE XII ACCOUNTABILITY OF THE STUDENT COUNCIL OFFICERS

Section 1. Any member of the Central Student Council may be impeached for deliberately violating this constitution, or lack of moral ascendancy to govern, or gross negligence of his or her duties, and for grave offense or misconduct reflecting upon his or her moral character. The penalty shall range from reprimand, to suspension, to removal from office depending upon the gravity of the offense.

Section 2. Any member of the CSC deemed not impeachable due to the offense may still be suspended on the following grounds: unwarranted physical violence, speech or action that tends to destroy the credibility and reputation of the CSC, three unexcused absences occurring consecutively on announced meetings or insubordination.

Section 3. All cases of impeachment or suspension shall be tried and decided by the Central Judiciary Board and shall be initiated by 1/3 of all its members, or by any student, provided that the same is endorsed by 1/3 of all the members of the CSC. Provided, further, that, if 1/3 of all the members of the CSC are subject of impeachment or suspension, the case may be filed directly with the Central Judiciary Board.

ARTICLE XIII
LOCAL STUDENT COUNCIL

- Section 1. Every faculty, college or school shall have a local student council, which shall have autonomy with the management of its internal affairs and the implementation of its respective programs and activities. The local student council shall ensure the implementation of the CSC programs and regularly coordinate with the latter.
- Section 2. The Local Student Council shall enjoy fiscal autonomy and shall have a just share in the distribution of the funds as may be provided by this constitution.
- Section 3. The elections of the local student councils shall be held as may be provided by this Constitution.

ARTICLE XIV
COMMISSION ON ELECTION

- Section 1. There shall be a Commission on Elections, which shall be independent, supreme within its own sphere.
- Section 2. The Central COMELEC shall be composed of one (1) representative from each faculty, college or school to be chosen in the manner herein provided. The Central COMELEC shall elect among its members a Chairman and a Vice Chairman.
- Section 3. The commissioners of the central and local commission on elections must be bona fide students of their respective faculty, college or school, enrolled with a total of at least fifteen (15) units excluding P.E. And NSTP, must have a general weighted average of at least 2.50 or its equivalent, and 2.75 or its equivalent for the Faculty of Civil Law and Faculty of Medicine and Surgery. Not having been found guilty by the University of an offense punishable by at least suspension or debarment and must not have been a candidate for any elective position in the immediately preceding elections.

No member of the Commission shall, during his tenure, hold any other office in the University. Neither shall he be affiliated to any political parties, fraternities and sororities in the University.

- Section 4. Every local COMELEC shall submit its list of six (6) recommendees to their respective dean for review of their qualifications and approval of their appointment every first Friday of March. Provided however, that, in case the dean shall immediately return their names to the local COMELEC concerned with his written objection thereto. Provided further, that, if the dean shall not act on the said recommendation within six (6) school days from its submission, the recommendees shall be considered approved by the dean. Provided further, that notwithstanding the objection made by the dean, the commission may still move for a reconsideration. Provided finally, that if the reconsideration is denied, a new recommendee/(s) must be submitted.

The appointees shall assume their office on the first day of the following school year.

- Section 5. The Local COMELEC of each faculty, college or school shall send its duly elected representative to the Central COMELEC. The six (6) initial membership of the Local COMELEC shall elect from among its members their Chairman and a Representative to the Central COMELEC. Once a representative is elected, he shall automatically forfeit his membership in the Local COMELEC. The Chairman and the four (4) remaining commissioners of the Local COMELEC shall compose its permanent membership.

- Section 6. The Central Commission on Elections shall exercise the following powers and functions:
- a. Promulgate, enforce, and administer all laws and regulations relative to the conduct of an election, plebiscite, referendum and recall.

b. Exercise exclusive original jurisdiction over all contests relating to the elections, returns and qualifications of all the elective executive board officers, and exclusive appellate jurisdiction over all contests involving elected local student council and class/section organization officers decided by the Local COMELEC concerned.

c. Decisions, final orders or rulings of the Central COMELEC on election contests involving local student council and section organization officers shall be final, executory and non-appealable.

d. Deputize, with the concurrence of the University Administration, security guards of the University, for the exclusive purpose of ensuring free, orderly, honest, peaceful and credible elections.

e. Investigate and, where appropriate, prosecute cases of violations of election laws, including acts or omissions constituting election frauds, offenses, and malpractices. In such cases, the Commission may file the necessary complaint in the Office for Student Affairs for disciplinary action.

f. Issue directives or orders as are necessary for the ordinary administration of the Commission.

g. Promulgate its own rules and procedures in the discharge of its adjudicatory powers.

Section 7. The decisions, orders, and rulings of the Central COMELEC in an election contest and those relating to the exercise of its quasi-judicial powers shall be subject to review, upon proper appeal, before the Central Judicial Board. Provided, such of facts, instances of grave abuse

- of discretion amounting to patent and substantial denial of due process, or for lack of jurisdiction.
- Section 8. The commission shall enjoy fiscal autonomy. Their semestral appropriations shall be automatically and regularly released during the second semester of the current school year.
- Section 9. The central and local elections shall be synchronized and shall be held every third Friday of February, unless otherwise fixed by the COMELEC in special cases as may be provided by la. In no case shall the election be held not later than the third Friday of February.
- The elections for class/section organization officers shall be held not later than twenty-one (21) calendar days from the opening of each semester.
- Section 10. Unless otherwise fixed by the COMELEC in special cases, the election period shall commence two weeks before the day of th elections and shall end two weeks thereafter.
- Section 11. The winners in the Central and Local Council elections shall be proclaimed not later than fifteen (15) school days from the date of election.
- If, for any reason, less than twenty-five percent (25%) of the voting population cast their votes in any election, the COMELEC unit concerned shall declare a failure of elections and shall immediately call a special election as provided by law.

ARTICLE XV THE STUDENT ORGANIZATION COORDINATING COUNCIL

- Section 1. There shall be the Student Organization Coordinating Council (hereinafter referred to as SOCC), an independent apolitical body of the University of Santo Tomas, deriving its authority and power from the recognized student organizations, which it represents.

- Section 2. The SOCC shall uphold the Christian ideals and objectives of the University of Santo Tomas by promoting the socio-cultural well-being of the students in this university.
- Section 3. The SOCC shall protect the recognized organizations' democratic rights and welfare.
- Section 4. The SOCC shall serve as a forum for socio-cultural development whereby the students can put into practice the principles and ideas of aesthetics, camaraderie, and brotherhood; in coordination with the Central Student Council as the case may be.
- Section 5. The SOCC shall have its own officers:
a. Only the officers and/or official representatives of each organization who have undergone the leadership-training seminar shall be qualified to run for the position in the council.

b. The officers and/or official representatives from each recognized organization shall elect a set of officers provided that each organization shall only be entitled with one vote.
- Section 6. The SOCC shall enjoy a fiscal autonomy.

ARTICLE XVI FUNDS

- Section 1. the funds of the CSC and the different local student councils shall be derived from two sources, namely: the student council fees collected from the students, through UST Treasurer's Office during semestral registration, and the annual interest collected from the UST Central Student Council Trust Fund.
- Section 2. Every semester an amount of twenty pesos (PhP 20.00) shall be collected by the UST Treasurer's Office as student council fee which may be increased or reduced,

as may be provided by this Constitution. The said fees shall be disbursed on the following manner:

a. Forty Percent (40%) of the total amount collected from every faculty, college or school shall accrue to the CSC and shall be deposited in any accredited bank through the joint account of the CSC President, CSC Treasurer and CSC Adviser.

b. Sixty Percent (60%) of the total amount collected shall be distributed proportionately to each local student council.

c. The said fees shall be released by the University through the treasurer's office not later than August for the first semester, and not later than January for the second semester.

d. The CSC shall have the power to increase or reduce the said amount in cases as may be determined by the CSC with the approval of the University Administration.

Section 3. There will be a sum of 1.5 million pesos in trust fund, established under the joint management of the University represented by the UST treasurer, and the CSC, represented by the CSC President and CSC Treasurer.

The annual interest of the said fund shall be disbursed in the following manner:

a. Forty Percent (40%) of the total annual interest shall accrue to the CSC and be deposited in any accredited bank through the joint account of the CSC President, CSC Treasurer and CSC Adviser.

- c. Sixty Percent (60%) of the total annual interest shall be distributed equally to all local student councils.

The said annual interest shall be released through the UST Treasurer's Office not later than April to the incoming CSC and Local Student Council.

ARTICLE XVII UNIVERSITY AUDIT

- Section 1. The CSC and the Local Student Councils, at the end of their terms, shall submit to the University through the Office for Student Affairs their respective financial statements.

ARTICLE XVIII ADVISER

- Section 1. The Assistant to the Rector for Student Affairs shall be the ex-officio adviser of the CSC.

ARTICLE IX AMENDMENTS AND REVISIONS

- Section 1. Any amendment to, or revision of, this constitution may be proposed by the Central Student Council upon a vote of 2/3 of all its members, or by a Constitutional Convention, or both.
- Section 2. The Central Student Council may, by a vote of the absolute majority of all its members, submit the question of amending the Constitution to the Thomasian studentry in a referendum.
- Section 3. The CSC may, by a vote of the absolute majority of all its members, call a Constitutional Convention.
- Section 4. Any amendment to, or revision of, this Constitution shall be valid when ratified by a majority of all the votes cast in a plebiscite which shall be held not earlier than 10

days nor later than 30 days after the approval of such amendments or revision by the Rector of the University.

ARTICLE XX
TRANSITORY PROVISIONS

- Section 1. In case of inconsistency between the CSC Constitution and the Local Student Council Constitution, the former shall prevail over the latter on matters of public concern. In all cases not expressly addressed by this Constitution, the local student council constitution shall be applied in a suppletory character.
- Section 2. The term of the incumbent members of the Central and Local COMELEC shall expire on the third Tuesday of July 2002. For this purpose, the outgoing members of the COMELEC in accordance with Section 4, Article XIV of this Constitution. The new members shall serve only until the last day of the school year 2002-2003.
- Section 3. This Constitution shall take effect immediately upon its ratification by a majority of the votes cast in a plebiscite held for the purpose and shall supersede all previous Constitutions.

The foregoing proposed Constitution of the Student Government of the University of Santo Tomas was approved by the Constituent Assembly on the sixth day of May, two thousand and two, and accordingly signed on the twentieth day of May, two thousand and two, at the Conference Room of the Office of Student Affairs, by the Commissioners whose signatures are hereunder affixed:

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